

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
ANTHONY MCCREATH,

Plaintiff,

-against-

THE CITY OF NEW YORK,
P.O. ADAM GEORG (Tax ID # 938548),
P.O. MATTHEW LOUIS,
Individually and in their official capacities,

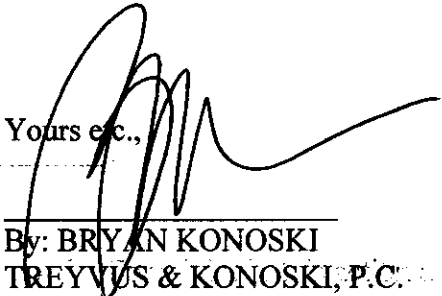
Defendants.
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To the above named Defendant:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this summons, to serve a Notice of Appearance, on the Plaintiffs' attorney (s) within 20 days after the service of this summons, exclusive of the day of the service (or within 30 days after the service is completed if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 8, 2013

Yours etc.,


By: BRYAN KONOSKI
TREYVUS & KONOSKI, P.C.
Attorneys for the Plaintiff
305 Broadway, 14th Floor
New York, NY 10007
(212) 897-5832

Defendants' Addresses:

CITY OF NEW YORK

100 Church Street

New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
ANTHONY MCCREATH,

DKT#:

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK,
P.O. ADAM GEORG (Tax ID # 938548),
P.O. MATTHEW LOUIS,
Individually and in their official capacities,

Defendants.
-----X

Plaintiff, ANTHONY MCCREATH, by his attorneys, TREYVUS & KONOSKI, P.C.,
complaining of the defendants, respectfully alleges as follows:

PARTIES

1. Plaintiff, ANTHONY MCCREATH, is a citizen of the United States and at all relevant times a resident of the City and State of New York.
2. THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. THE CITY OF NEW YORK, maintains the New York City Police Department, a duly organized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.
4. That at all times hereinafter mentioned, the individually named defendants, P.O. ADAM GEORG (Tax ID # 938548), and P.O. MATTHEW LOUIS, were duly sworn police officers of the New York City Police Department and were acting under the supervision of said

department and according to their official duties.

5. That at all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York or THE CITY OF NEW YORK.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, CITY OF NEW YORK.

FACTS

8. On or about March 1, 2013, the exited a CVS store located in Queens County and proceeded to walk along the sidewalk.

9. When Plaintiff approached a location at or near a Kentucky Fried Chicken store located on Francis Lewis Boulevard in Queens County he was approached and stopped by Defendants, P.O. ADAM GEORG (Tax ID # 938548), and P.O. MATTHEW LOUIS.

10. At the time the Plaintiff was stopped he did not commit any crime and was not suspected of committing a crime. The Defendants stopped the Plaintiff without probable cause or reasonable suspicion.

11. P.O. ADAM GEORG (Tax ID # 938548), and P.O. MATTHEW LOUIS pushed the Plaintiff to the ground and proceeded to punch, kick, and strike the Plaintiff.

12. The Defendants placed a handcuff on one of Plaintiff's wrists and, with the other handcuff, pulled his arm all the way up his back so that Plaintiff's hand was up near his head. This caused Plaintiff severe pain.

13. The Plaintiff suffered a facial laceration that required stitches to suture. As a result, he suffered significant pain, suffering, and physical injury.

14. The Plaintiff's sunglasses fell off his face during the assault that was perpetrated against him by the Defendants. The Plaintiff asked the Defendants for his sunglasses. After asking for the sunglasses, one of the Defendants intentionally, wilfully, and maliciously, stepped on the glasses and broke them.

15. The Defendants did not have any justification for using physical force against the Plaintiff.

16. The Plaintiff was arrested and criminally charged with unlawful possession of marijuana, disorderly conduct, and resisting arrest under docket number 2013QN011499.

17. The Plaintiff received an adjournment in contemplation of dismissal (ACD) for these charges.

31. As a result of the foregoing, plaintiff sustained, inter alia, pain, suffering, physical injury, loss of enjoyment of life, emotional distress, mental anguish, embarrassment and humiliation, shame, indignity, damage to reputation, and suffered a deprivation of his constitutional rights.

FEDERAL CAUSES OF ACTION

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

32. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "31" with the same force and effect as if fully set forth herein.

33. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of law.

34. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America and in violation of 42 U.S.C. § 1983

35. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

36. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

37. Defendants collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C § 1983

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "37" with the same force and effect as if fully set forth herein.

39. That the level of force employed by defendants against Plaintiff, was objectively unreasonable and in violation of Plaintiff's, constitutional rights.

40. As a result of the foregoing, the plaintiff suffered, inter alia, multiple bodily injuries as well as psychological injuries, pain, suffering, physical injury, loss of enjoyment of life, emotional distress, mental anguish, embarrassment and humiliation, shame, indignity, and damage to reputation.

STATE LAW CAUSES OF ACTION

FIRST CLAIM FOR RELIEF UNDER NEW YORK STATE LAW
ASSAULT

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "40" with the same force and effect as if fully set forth herein.

42. Defendant, P.O. ADAM GEORG (Tax ID # 938548), and P.O. MATTHEW LOUIS, intended to cause and/or to place the Plaintiff in fear or apprehension of harmful or offensive contacts with Plaintiff's person.

43. Plaintiff was placed in great fear and apprehension of harmful and offensive contacts with her person.

44. Plaintiff was placed in fear and apprehension that the actions of P.O. ADAM GEORG (Tax ID # 938548), and P.O. MATTHEW LOUIS would cause her to become injured or falsely arrested.

45. At no time did the Plaintiff consent to any of the acts P.O. ADAM GEORG (Tax ID # 938548), and P.O. MATTHEW LOUIS.

46. P.O. ADAM GEORG (Tax ID # 938548), and P.O. MATTHEW LOUIS committed the foregoing acts intentionally, despicably, maliciously, and oppressively to injure the Plaintiff, and in willful and conscious disregard of the safety of the Plaintiff.

SECOND CLAIM FOR RELIEF UNDER NEW YORK STATE LAW
BATTERY

47. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "46" with the same force and effect as if fully set forth herein.

48. Defendant, P.O. ADAM GEORG (Tax ID # 938548), and P.O. MATTHEW LOUIS, intended to make harmful or offensive contact with the Plaintiff's person.

49. Plaintiff was subjected to a harmful and offensive contact with her person as a result of the actions of P.O. ADAM GEORG (Tax ID # 938548), and P.O. MATTHEW LOUIS.

50. At no time did the Plaintiff consent to any of the acts of P.O. ADAM GEORG (Tax ID # 938548), and P.O. MATTHEW LOUIS.

51. P.O. ADAM GEORG (Tax ID # 938548), and P.O. MATTHEW LOUIS committed the foregoing acts intentionally, despicably, maliciously, and oppressively to injure the Plaintiff, and in willful and conscious disregard of the safety of the Plaintiff.

THIRD CLAIM FOR RELIEF UNDER NEW YORK STATE LAW
VICARIOUS LIABILITY and RESPONDEAT SUPERIOR

52. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "51" with the same force and effect as if fully set forth herein.

53. That the corporate defendant, CITY OF NEW YORK, is liable to the Plaintiff for the acts and omissions and negligence, and the assault and battery, of its various agents, servants, and employees, including P.O. ADAM GEORG (Tax ID # 938548), and P.O. MATTHEW LOUIS, under the legal theories of "Vicarious Liability" and "Respondeat Superior".

CONDITIONS PRECEDENT

54. Within 90 days of the Plaintiff's injury, on or about April 9, 2013, a Notice of Claim was served upon the defendant City of New York, setting forth:

- a. The name and post office address of the claimant and his attorney;
- b. The nature of the claim;
- c. The time when, the place where, and the manner in which the claim arose;
- d. The items of damages and injuries sustained so far as practicable.

55. The Notice of Claim was served upon the defendant, City of New York, within 90

days after Plaintiff's several causes of action accrued.

56. More than 30 days have elapsed since the filing of the Notice of Claim and the City of New York has not requested a hearing pursuant to Section 50-H of the General Municipal Law.

57. This action has been commenced within one year and 90 days after Plaintiff's various causes of action have accrued.

58. Plaintiff has duly complied with all of the conditions precedent to the commencement of these causes of action.

DAMAGES AND RELIEF REQUESTED

59. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "58" with the same force and effect as if fully set forth herein.

60. All of the foregoing acts by defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right:

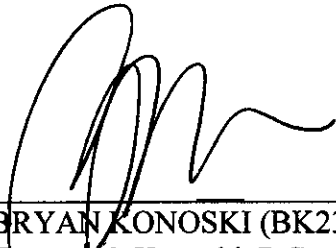
- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. To receive equal protection under the law.

WHEREFORE, plaintiff demands judgment against the Defendants, P.O. ADAM GEORG (Tax ID # 938548), and P.O. MATTHEW LOUIS, pursuant to the federal causes of action above, in the sum of ONE MILLION DOLLARS (\$1,000,000.00) in compensatory damages, and ONE MILLION DOLLARS (\$1,000,000.00) in punitive damages, plus attorney's fees, costs and disbursements of this action, and with interest at the legal rate from the date the cause of action accrued.

WHEREFORE, plaintiff demands judgment against the Defendant, CITY OF NEW YORK, and P.O. ADAM GEORG (Tax ID # 938548), and P.O. MATTHEW LOUIS, pursuant to the state law causes of action above, in the sum of ONE MILLION DOLLARS (\$1,000,000.00) in compensatory damages, and ONE MILLION DOLLARS (\$1,000,000.00) in punitive damages, together with the costs and disbursements of this action, and with interest at the legal rate from the date the cause of action.

Dated: New York, NY
September 8, 2013

By:



BRYAN KONOSKI (BK2325)
Treyvus & Konoski, P.C.
Attorney(s) for the Plaintiff
305 Broadway, 14th Floor
New York, NY 10007
(212) 897-5832

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York, shows:

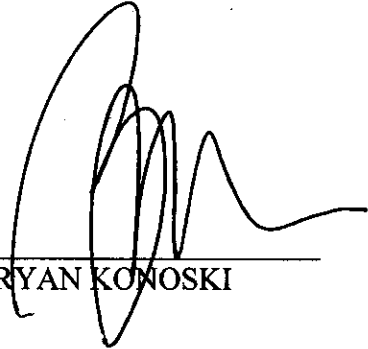
That deponent is a principal of the LAW OFFICES OF TREYVUS & KONOSKI, P.C., the attorneys of record for the plaintiffs in the within action; that deponent has read the foregoing Verified Complaint and knows the contents thereof; that the same is true to the deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, deponent believes them to be true. Deponent further says that the reasons this verification is made by deponent and not by plaintiffs, is that plaintiffs reside in a County other than that in which deponent maintains his offices.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which he has made or has caused to be made concerning the subject matter of this action, and statements of parties and/or witnesses made herein.

The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, NY
September 7, 2013

By:


BRYAN KONOSKI

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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ANTHONY MCCREATH,

DKT#:

Plaintiff,

- against -

THE CITY OF NEW YORK,
P.O. ADAM GEORG (Tax ID # 938548),
P.O. MATTHEW LOUIS,
Individually and in their official capacities,

Defendants.
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**NOTICE OF COMMENCEMENT OF ACTION
SUBJECT TO MANDATORY ELECTRONIC FILING**

PLEASE TAKE NOTICE that the matter captioned above, which has been commenced by filing of the accompanying documents with the County Clerk, is subject to mandatory electronic filing pursuant to Section 202.5-bb of the Uniform Rules for the Trial Courts. This notice is served as required by Subdivision (b)(3) of that Section.

For information about electronic filing, including access to Section 202.5-bb, consult the website of the New York State Courts Electronic Filing System ("NYSCEF") at www.nycourts.gov/efile or contact the NYSCEF Resource Center at 646-386-3033 or efile@courts.state.ny.us.

Dated: New York, N.Y.
September 8, 2013

By:


Yours etc.,

BRYAN KONOSKI
Treyvus & Konoski, P. C.
Attorney(s) for the Plaintiffs
305 Broadway, 14th Floor
New York, N.Y. 10007
(212) 897-5832

TO:
Defendants' Addresses:
CITY OF NEW YORK
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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ANTHONY MCCREATH,

DKT#:

Plaintiff,

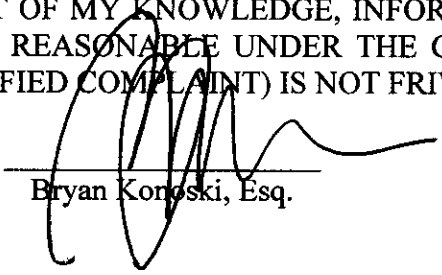
- against -

THE CITY OF NEW YORK,
P.O. ADAM GEORG (Tax ID # 938548),
P.O. MATTHEW LOUIS,
Individually and in their official capacities,

Defendants.
-----X

SUMMONS AND VERIFIED COMPLAINT

PURUSANT TO SEC. 130.1.1 OF THE RULES OF THE CHIEF ADMINISTRATOR (22nyccr),
I CERTIFY THAT TO THE BEST OF MY KNOWLEDGE, INFORMATION AND BELIEF,
FORMED AFTER AN INQUIRY REASONABLE UNDER THE CIRCUMSTANCES, THE
WITHIN (SUMMONS AND VERIFIED COMPLAINT) IS NOT FRIVOLOUS.



Bryan Konoski, Esq.

TREYVUS & KONOSKI, P.C.
Attorneys for the Plaintiffs

**305 Broadway, 14th floor
New York, N.Y. 10007
(212) 897-5832
Fax: (718) 668-1094**